SAGARMALA

सत्यमेव जयते

महापत्तन प्रशुल्क प्राधिकरण
TARIFF AUTHORITY FOR MAJOR PORTS
पत्तन, पोत परिवहन और जलमार्ग मंत्रालय, भारत सरकार
Ministry of Ports, Shipping and Waterways, Government of India

मप्रप्रा TAMP

G20 भारत 2023 INDIA

आज़ादी का अमृत महोत्सव

No. TAMP/12/2009-Misc.
27 March 2025

To

1. The Chairmen, All Major Port Authorities.
2. Chennai International Terminals Private Limited
3. India Gateway Terminal Private Limited
4. Nhava Sheva International Container Terminal Private Limited
5. Gateway Terminal (India) Private Limited
6. South West Port Limited
7. Indira Container Terminal Private Limited
8. Vizag Seaport Private Limited
9. TM International Logistics Limited
10. Bharat Petroleum Corporation Limited
11. International Seaports (Haldia) Private Limited
12. Central Warehousing Corporation
13. Chennai Container Terminal Private Limited
14. Visakha Container Terminal Private Limited
15. Buthello Travels
16. IFFCO Kisan and Logistics Limited

Subject: **Annual Indexation factor for ARR computation and indexation of SOR by BOT operators under Tariff Guidelines, 2019 for BOT operators (previously governed by 2005 Tariff Guidelines) with reference to variation in Wholesale Price Index (WPI).**

Sir,

As per Clause 2.8 and 2.12 of the Tariff Guidelines, 2019, the Authority is required to announce the indexation factor considering the Wholesale Price Index (WPI) occurring between between 1 January 2021 and 1 January of the relevant year i.e. 1 January 2025 so as to enable the BOT operators governed under the Tariff Guidelines, 2019 (previously governed by the Tariff Guidelines, 2005) for computation of indexed ARR and to draw the indexed SOR to be applicable during the year 2025-26.

2.2. As per Section 54 of the MPA Act 2021, the Central Government may constitute an Adjudicatory Board to discharge the powers and functions of the Adjudicatory Board other than tariff setting listed under Section 58 (1) of the ibid Act. TAMP is to discharge the functions of the Adjudicatory Board till constitution of the Adjudicatory Board.

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2.3. The MOPSW vide its letter dated 3 November 2021 has already issued Tariff Policy 2021 for Tariff fixation of Major Ports and vide letter dated 21 December 2021, the MOPSW has also issued Tariff Guidelines, 2021 for future PPP concessionaires in exercise of the powers conferred under the MPA Act 2021.

2.4. As per the Tariff Policy 2021 for tariff fixation of Major Ports, the IPA has to intimate the annual indexation factor to all Major Port Authorities under the New Tariff Guidelines 2021.

2.5. The Tariff Guidelines applicable for the existing PPP Concessionaires governed by the Upfront Tariff Guidelines, 2008, Reference Tariff Guidelines, 2013 and Tariff Guidelines, 2019 under the MPA Act 2021 is yet to be issued by the MOSPW.

2.6. As you may be aware, TAMP has been till date announcing the annual indexation factors for PPP Concessionaire governed under the respective guidelines.

2.7. It is relevant here to state that as per Section 58(1) the MPA Act 2021, the Adjudicatory Board shall perform the functions listed in said section of the Act other than tariff setting. Clause (a) under Section 58(1) prescribes the following function to be carried out by the Adjudicatory Board:

(a). the functions envisaged to be carried out by the erstwhile Tariff Authority for Major Ports arising from the Tariff Guidelines of 2005, 2008, 2013, 2018 and 2019 and tariffs orders issued by the said Authority.

3.1. In view of the above position and as such, in the absence of the specific tariff guidelines for the existing PPP Concessionaires governed under the Tariff Guidelines 2019 after the MPA Act 2021 has come into force and recognizing that their SOR is due for annual indexation in the rate w.e.f. 1 May 2025 (in case of Tariff Guidelines, 2019 for BOT operators), it may be just and fair that indexation factors are announced in time for the existing PPP Concessionaires to enable them index their tariff governing under Tariff Guidelines, 2019 (previously governed by 2005 Tariff Guidelines)

3.2. Accordingly, indexation factors with reference to the variation in Wholesale Price Index (WPI) occurring between January 2024 and December 2024 has been worked out as per the clause 2.8 and 2.12 of the Tariff Guidelines, 2019. For this purpose, the WPI for all commodities occurring between the relevant dates was ascertained from the Ministry of Commerce and Industry, Government of India. 100% variation in WPI occurring between 1 January 2024 and 1 January 2025 works out to 1.74% and 60% variation works out to 1.04%.

4. Considering variation in WPI occurring between 1 January 2024 and 1 January 2025, the Authority has approved the following:

(i). 1.74% Annual Indexation (at 100% of the WPI variation) for computation of indexed ARR as per Clause 2.8 of the Tariff Guidelines, 2019 for tariff revision proposal filed in the year 2024-2025.

(ii). 1.04% Annual Indexation (at 60% of the WPI variation) for indexation of SOR to arrive at the indexed SOR by BOT operators as per Clause 2.12 of the Tariff Guidelines, 2019.

5. The indexed SOR shall be effective from **1 May 2025 and shall be valid till 30 April 2026**.

6. The BOT operators may, therefore, take appropriate action accordingly.

7. This issues with the approval of Competent Authority.

Yours faithfully,

(**Anuradha Sharma**)
Director